Amity Model United Nations I

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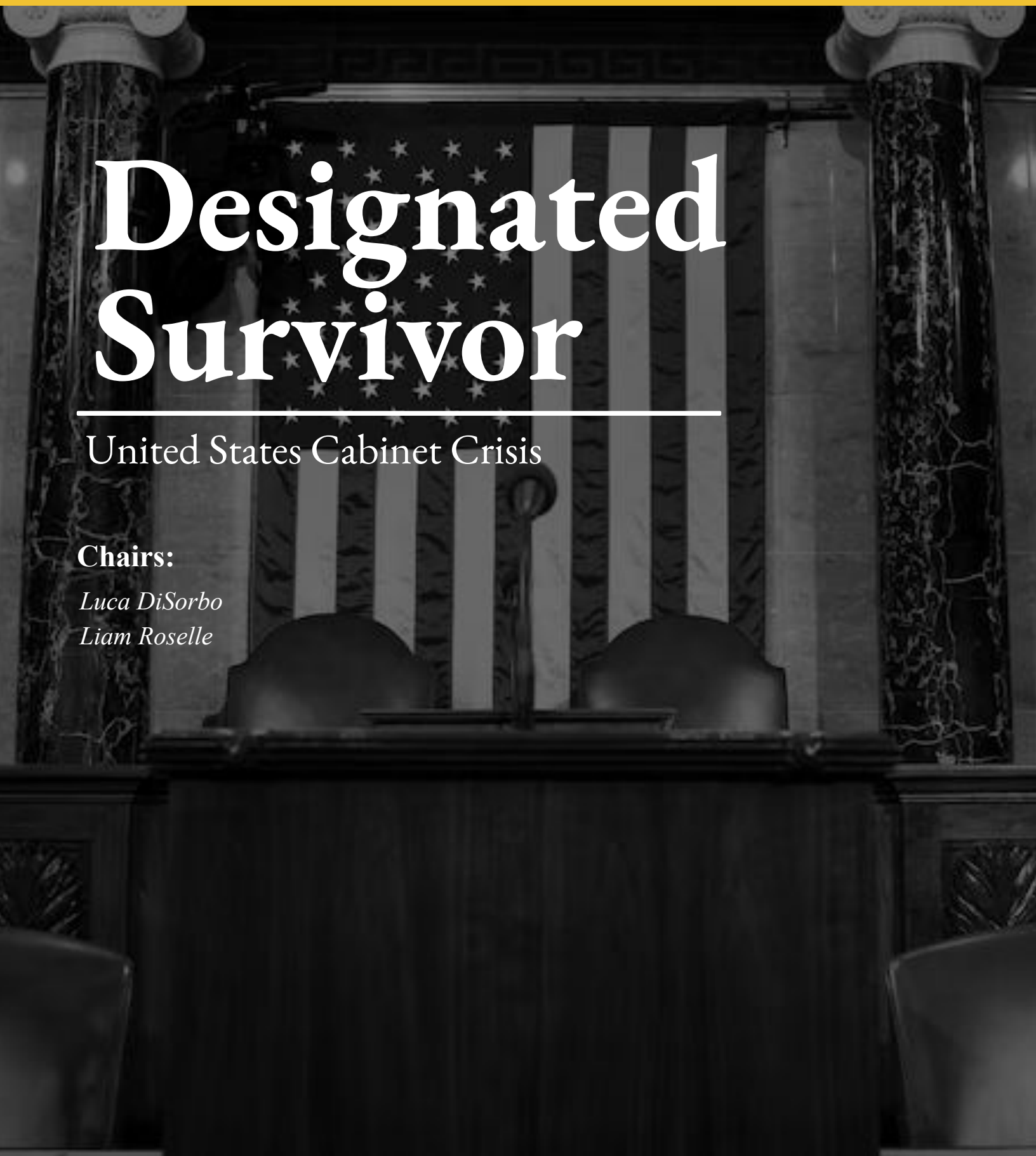

Designated Survivor

United States Cabinet Crisis

Chairs:

Luca DiSorbo

Liam Roselle

Chairs: Luca DiSorbo & Liam Roselle

Committee: Designated Survivor: United States Cabinet Crisis

Topic: Restoring Legitimate Government Following the Capitol Attack

I. Introduction

President Richard Hale's first State of the Union address had been scheduled for the evening of January 15, 2026. Elected on a platform of national renewal, infrastructure investment, and diplomatic re-engagement, this State of the Union was expected to be Hale's case for an ambitious second-year agenda. A two-term South Carolina governor and decorated veteran from the Iraq War, Hale was already popular with a reputation for steady leadership and a knack for bipartisanship. Attendance to what would be one of the most significant State of the Union addresses in recent memory was broad. Just minutes into President Hale's State of the Union address, reports of a mass casualty incident inside the United States Capitol Building were first reported at 9:14 PM. While the full details of the event are unknown, President Hale, the Vice President, the Speaker of the House, the President Pro Tempore of the Senate and most of the Cabinet have been confirmed dead. An overwhelming majority of both houses of Congress have perished. Casualties among staff, security, press, and guests number in the hundreds. Under long standing precedent, Secretary of Energy Luke Kelly was selected to remain away from the State of the Union to ensure the continuance of governance if a situation like that of the 15th were to ever occur. Secretary Kelly was sworn in as acting president pening a complete accounting of the succession line.

This committee will operate fundamentally differently from a standard General Assembly or Security Council. Delegates will play specific members of a select cabinet organized to guide the United States through this unprecedented event. Each member has their own agenda, authority, and relationships. The situation will evolve as more information is provided, and every decision made will affect the outcome of the country. Delegates will receive periodic crisis updates from the backroom to introduce new information, which the committee will need to work together to adequate solve via binding committee directives (smaller, informal resolutions). Delegates may also send private personal directives during an unmoderated caucus or when deemed appropriate by the Chair. Private directives represent the independent acts of a Delegate's character. Private directives shall be written in character and addressed to a specific person/institution, while being within one's actual authority. Delegates may also draft and submit press releases on behalf of the government to communicate to the American public.

This committee rewards delegates who stay in character, think strategically about their role authority and limitations, and engage with complexity. The goal is not to score rhetorical points, but rather to guide a nation through crisis. No matter the role, each member has an opportunity to define the outcome of this committee. This uncontrollable situation has no clean answers that delegates will have to solve with nuance and diplomacy.

Committee Members

1. Luke Kelly — Acting President *Fmr. Secretary of Energy* | *Fmr. Representative from Michigan* | Kelly spent twelve years in the House representing a working-class district in western Michigan before being appointed Secretary of Energy. A moderate with deep ties to both the labor movement and the energy industry, he was never considered a political heavyweight. He was chosen as designated survivor out of low cabinet pecking order, uncontroversial enough to be left out. Now he is the most powerful person in the United States. He is competent but untested at this scale, and his legitimacy will be questioned immediately as every action becomes a test of his leadership.

2. Rafael Witt — Secretary of Homeland Security *Fmr. Governor of New Mexico* | Witt served two terms as governor before being tapped for DHS, where he built a reputation as a tough but pragmatic administrator. He has significant experience managing border crises and natural disasters, but nothing to this scale. As the second-highest surviving official in the executive branch, Witt is both Kelly's most important ally while having the potential to be a significant rival. He commands enormous institutional power through DHS, FEMA, and the Secret Service.

3. Jane Steward — Deputy White House Chief of Staff *No prior elected office* | Steward is a career political operative who has worked in the White House for three administrations across both parties. She understands the machinery of the executive branch better than almost anyone alive. She was not at the Capitol because she was managing a scheduling conflict from the West Wing. Quiet, methodical, and loyal to the institution of the presidency rather than any individual, she will be one of the most valuable people in the room.

4. Matthew Voyles — Chairman of the Joint Chiefs *Four-Star Army General* | *Fmr. Delta Force Operator* | Voyles is decorated across three decades of service, with combat experience in nearly every major American military engagement since the Gulf War. He is deeply respected within the military and deeply skeptical of politicians. His instinct in a crisis is to act decisively, and he will push hard for a swift, forceful response to the attack. The question of whether the military answers to Acting President Kelly will be an undercurrent throughout the committee.

5. Casey Robinson — Senior Most Surviving Senator *Senator from Virginia* | Robinson is a four-term senator and former state attorney general who was known as one of the most reliable procedural minds in the Senate. She survived because she had stepped out of the chamber moments before the event. Now the most senior surviving member of the majority, she carries the weight of a devastated institution on her shoulders. She will be a fierce advocate for restoring congressional authority and will resist any moves by the executive branch to consolidate power under the cover of emergency.

6. Rebecca Ward — Surviving Senator *Senator from Oregon* | Ward is a second-term senator and former environmental lawyer who built her career on careful, principled opposition. She and Robinson have clashed repeatedly on policy but share a deep commitment to the rule of law. Ward will be a voice of caution. Her relationship with Robinson will be one of the committee's most important dynamics.

7. Daniel Krawitz — Senior Most Surviving House Member *Representative from Illinois's 7th District* | Krawitz is a seven-term congressman and former Chicago alderman who is tough, loud, and politically shrewd. He was absent from the Capitol due to a family medical emergency. He is acutely aware that the House has been almost entirely wiped out, and he will fight to ensure it is not sidelined during the recovery. He is suspicious of the Senate, contemptuous of unelected officials, and deeply uncertain about Kelly's ability to lead.

8. David Ross — Surviving House Member *Representative from Vermont's At-Large District* | Ross is twenty-nine days into his first term. A former high school civics teacher and local selectman, he won his seat in a surprise upset and was attending a freshman orientation event offsite when the attack occurred. He has no Washington experience, no political network, but he is one of only a handful of surviving members of the House, which makes him constitutionally significant. He will be the conscience of the committee and, at times, its most inconvenient voice.

9. James Wallace — Chief Justice of the Supreme Court *Fmr. Judge, DC Circuit Court of Appeals* | Wallace was appointed to the DC Circuit fifteen years ago and elevated to Chief Justice four years later. A former constitutional law professor, he is precise, measured, and deeply uncomfortable with the political dimensions of his current role. He administered the oath to Acting President Kelly and is now being asked to weigh in on questions that have no clean legal answers. He will be a stabilizing presence but will resist being used as political cover for decisions that are fundamentally not his to make.

10. Avery Lincoln — FBI Director *Fmr. FBI Agent* | *Fmr. News Anchor* | Lincoln's path to the directorship is unusual: a decade as a field agent, a career pivot into broadcast journalism, and then a return to federal service in a senior investigative role before being appointed director. She is sharp, media-savvy, and deeply aware of how information shapes public perception in a crisis. She is running the most consequential investigation in American history with incomplete evidence and enormous pressure to produce answers. She will push back hard against anyone who tries to get ahead of the facts.

11. Ken Johnson — Chair of the Federal Reserve *Federal Reserve Governor, New York* | Johnson is an economist determined to prevent Wall Street's collapse following the attack. The markets may soon be in freefall and he has a narrow window to act before the damage becomes irreversible. He has emergency tools available but deploying them without clear governmental authority is legally murky. He will need the committee's support to stabilize the economy before the crisis compounds itself.

12. Margaret Osei — National Security Advisor *Fmr. CIA Deputy Director* | *Fmr. Ambassador to Nigeria* | Osei was in a secure facility running a separate intelligence briefing when the Capitol was struck. A veteran of three administrations, she has spent her career navigating the intersection of intelligence, diplomacy, and crisis management. She is one of the few people in the room who has handled foreign threats at the highest level, and her read on the terror group's claim of responsibility will carry enormous weight. She is loyal to the national interest above all else and will not hesitate to contradict the military or the FBI if she believes they are wrong.

13. Victor Salinas — White House Counsel *Fmr. Solicitor General | Fmr. Federal Judge* | Salinas was spared because he had been excused from the address to manage an urgent legal filing. As the president's chief legal advisor, he is now the person everyone turns to when the constitutional questions have no obvious answer. He is measured and meticulous, but the speed of the crisis will force him to make judgment calls that would normally take months to research. He will be in constant tension between what the law says and what the situation demands.

14. Diane Mercer — Press Secretary *Fmr. Political Journalist | Fmr. Campaign Communications Director* | Mercer was at the White House preparing post-address talking points when the attack occurred. In a normal crisis, her job is to manage the narrative. Tonight, the narrative is not managing itself. Riots are spreading, social media is flooded with misinformation, and the American public has no idea who is in charge or whether the government still functions. Mercer will push the committee to communicate clearly and quickly, and will clash with anyone who wants to keep information under wraps in the name of the investigation.

15. Admiral Theodore Payne — Director of National Intelligence *Fmr. Commander, Pacific Fleet | Fmr. NSA Director* | Payne was conducting an overseas intelligence coordination visit when the attack occurred and was rushed back to the secure bunker on emergency transport. As DNI, he sits atop the entire U.S. intelligence community and is responsible for synthesizing what seventeen agencies know — and don't know — about the attack. He is cautious by nature, deeply experienced, and acutely aware that the terror group's claim of responsibility may be exactly what someone wants the committee to believe. He will urge patience even when patience is the hardest thing to ask for.

II. Topic History

A. Continuity of Government

The idea of continuity of government (COG) planning the the United States grew out of the fear of a “decapitation strike” during the Cold War—a Soviet nuclear attack that would kill the entirety of the United States leadership, leaving the country unable to respond. It was out of this fear that the government built bunkers, pre-positioned successor officials, and calcified protocols for reconstructing federal authority. Currently the primary COG bunkers are Raven Rock Mountain Complex in Pennsylvania (used by the military) and the Mount Weather Emergency Operations Center in Virginia (used by FEMA and civilian leadership). A bunker beneath the Capitol building was decommissioned in 1992. COG planning was formalized under the Eisenhower administration in the 1950s, but was rarely used during the Cold War.

COG plans were first officially activated on 9/11, when Vice President Cheney was taken to an undisclosed location under the East Wing of the White House, and a small number of senior officials were sent to the primary COG bunkers. 9/11 exposed COG protocol as containing significant gaps: unreliable bunkers, outdated succession, and no clear protocol for a scenario in which Congress is largely destroyed. President Obama issued Presidential Policy Directive 40 in 2016, refining COG, but most of its contents remained classified.

B. Presidential Succession

Article II, Section 1, Claude 6 of the Constitution gives Congress the power to declare what officer shall act as president in the event both the president and vice president are unable to serve. It does not specify who that officer should be. This was somewhat remedied by the Presidential Succession Act of 1792, placing the Senate President Pro Tempore and Speaker of the House in line after the Vice President. James Madison argued against this controversial move, noting that placing legislative officers in the executive succession line would violate the separation of powers. The Act also contained provisions requiring a specific election if succession was triggered, but this mechanism was never used.

The Act was, however, superseded by the Presidential Succession Act of 1886, wherein Congress removed legislators and replaced them with cabinet secretaries in order of departmental seniority. This act also removed the requirement of a special election. In 1947, legislators were returned, with the Speaker taking and the Senate President Pro Tempore the taking third and fourth place respectively in the line of succession at the bequest of President Truman. Cabinet secretaries by order of seniority followed. This law is currently in force today, but the same constitutional concerns over the separation of power raised by Mansion in 1792 still remain.

The current succession order is as follows:

1. Vice President
2. Speaker of the House
3. President Pro Tempore
4. Secretary of State
5. Secretary of Treasury
6. Secretary of Defense
7. Attorney General
8. Secretary of the Interior
9. Secretary of Agriculture
10. Secretary of Commerce
11. Secretary of Labor
12. Secretary of Health and Human Services
13. Secretary of Transportation
14. **Secretary of Energy**
15. Secretary of Education
16. Secretary of Veterans Affairs
17. **Secretary of Homeland Security**

A successor must meet as constitutional requirements for the presidency (natural-born citizen, 35 years old, 14 years a resident). They must also not be under impeachment by the House at time of succession. Cabinet secretaries has to have been confirmed by the Senate. When a cabinet secretary succeed the president, they become Acting President, an important distinction. It is currently unclear whether an Acting President has the full powers of the presidency.

In American history, only the Vice President has ever succeeded the President. The most recent example. JFK's assination, saw Lyndon Johnson sworn in within hours. Legal scholars such as Akhil Reed Amar and Vikram Amar of Yale Law School have argued that the 1947 Act is unconstitutional. The COG Commission, co-chaired by former White House counsels, issued reports in 2003 and 2009 recommending significant reforms.

C. Designated Survivor Protocol

The designated survivor protocol is far less formal than assumed. It is a protocol, not a law. It has no statutory basis and its limitations are significant. The practice dates back to the Cold War, becoming standard in the 1980s, but it was not publicly acknowledged until somewhat recently. The designated survivor is typically a cabinet secretary low on the succession order so that their absence from the address would not be politically notable. The White House Chief of Staff generally makes the choice in coordination with the Secret Service.

The designated survivor is often secured at Camp David, accompanied by a military aide carrying the nuclear football, and a senior White House Staff member. The designated survivor would be immediately sworn in by the nearest judge if the unthinkable occurred. The protocol does not ensure that the survivor has staff, a legal team, or any political legitimacy to actually govern.

D. Emergency Powers

Emergency powers are a hotly contested terrain in American constitutional law. Generally, historians point to Lincoln's unilateral suspension of habeas corpus during the Civil War as a starting point. Lincoln's decision was deemed unconstitutional, and the Supreme Court rules that only Congress has the power to suspend the writ. This example established an uncomfortable balance between executive and legislative authority, as well as civil liberties, during times of crisis.

President Franklin D. Roosevelt's executive order no. 9066 authorized the forced relocation of 120,000 Japanese Americans under wartime emergency and was not formally reputed until 2018. Roosevelt's successor, President Truman seized the nations steel mills by force during the Korean War under threat of mass strikes. While the Supreme Court struck down Truman's decision, they also established a three-category framework for executive emergency powers:

1. President authorization (maximum power)
2. President acts where Congress is silent (uncertain power)
3. President acts against congressional will (minimum power)

Each debate over emergency powers since has fallen under this framework. The National Emergencies Act of 1976 passed post-Watergate required the president to formally declare a national emergency and specify which powers are being invoked. Declarations generally expire after a year, and Congress has the authority to nullify a declaration of emergency. The Insurrection Act authorizes the president to deploy the military within the United States to suppress a rebellion or enforce federal law, and the War Powers Act of 1973 authorizes the President with a 60 window of practically unchecked war powers.

E. Congress and Catastrophic Loss

Article I, Section 5 of the Constitution necessitate a majority of each chamber to do business. The House having 435 members, 218 are required. If less than that number have been recovered, the House cannot legally conduct any business.

However, under the 17th Amendment, Governors may appoint a temporary senator to fill any vacancies until a special election. In theory, the Senate could be quickly restored to function, but it requires the coordination of governors in dozens of states to act at once.

The House has no appointment mechanism, and can only fill vacancies via special election. It could be 6 month to a year before the House is functioning again, paralyzing the legislative branch.

F. Economic Crisis

The Federal Reserve Act established the Fed as the primary emergency lending authority, giving it broad powers in “unusual and exigent circumstances.” This power was used during the 2008 financial crisis to stabilize the stock market. A 2010 Act restricted the Fed's powers by requiring Treasury Secretary approval.

Historically, the market has had mixed responded to political crisis. After JFK’s assasination, the New York Stock Exchange closed early and sustained only modest loses. After 900, the Dow dropped nearly 700 points (7.1%) on the first day. The Fed injected $100 billion after the attack. Such an event such as that at the Capitol could have broad impacts on the global economy. Central banks in Europe, Japan, and elsewhere may be heavily affected, plunging the global economy into ruin.

III. Current Situation

A warning for this briefing: these are initial, unconfirmed reports from the FBI and eyewitnesses. All of this information could be incorrect.

At 8:43PM, The Metropolitan Fire Department was dispatched to the Library of Congress upon reports of a gas leak, and the Rayburn Office Building on reports of an activated fire alarm. At around 9:14 PM, loud booms were reported all throughout the National Mall. 911 calls came in shortly after from the Capitol Hill neighborhood reporting billowing smoke and fires from the Capitol building and the surrounding Hart, Dirksen, Russell, Cannon, Longworth, and Rayburn Office Buildings. Shortly after, a tweet was sent out by the Metropolitan Police Department advising citizens to stay far from the Capitol building.

Reactions online were immediate, and three main claims continued to repeat. First and most prevalent, was a car bomb parked outside the grounds of the Capitol. 6 cars were lined on Constitution Avenue, First Street, and Independence Avenue. The second theory was a bomb had been planted into the Capitol building. The third theory was a drone strike on these targets from another country. It has been 33 minutes since the attack.

IV. Questions to Consider

- How should the government legitimate authority after the sudden loss of national leadership?
- What immediate priorities should guide the response to a catastrophic attack that destabilizes the political system?
- How can stability be restored while avoiding overreach, authoritarianism, or power grabs during the crisis?
- How can the government ensure continuity of essential services, economic stability, and infrastructure resilience after the attack?
- What ethical and constitutional challenges arise when a previously low-profile Designated Survivor suddenly becomes head of state?
- What long-term reforms should be considered to prevent a similar leadership-collapse scenario in the future?
- If multiple political actors claim authority simultaneously, what criteria should determine who holds legitimate power?
- How should intelligence agencies balance transparency with the public against the need to prevent panic and misinformation?

V. Resources

1. Designated Survivor: Reality, Legal Basis, and How It Works – Bridge Legal
2. DoDI 3020.26, "DoD Continuity Policy," June 4, 2024
3. Order of presidential succession | USAGov
4. A Guide to Emergency Powers and Their Use | Brennan Center for Justice
5. Presidential Succession: Perspectives and Contemporary Issues for Congress | Congress.gov | Library of Congress